

Hispanic Origin Is Not a Race on the Census Form

Two questions about one person on the 2020 census form, and the two boxes people use to answer neither

Democracy's Data

Last updated 31 August 2026

The census, people say, tells us what race Americans are. On the 2020 form, question 8 asked whether the person was of Hispanic, Latino or Spanish origin. Question 9 asked what the person's race was. Between them the Bureau printed a note telling respondents to answer both, and explaining why:

For this census, Hispanic origins are not races.

That sentence is a decision, made by the federal government, about the relationship between two things people are routinely asked to be one thing about. So what does the census actually measure when it measures race? And what happens when the form's categories and people's self-understanding pull apart? Both questions can be answered from the record, because the form that separates race from origin also publishes the two answers together.

01 The test

The data is the 2020 Census Redistricting Data (P.L. 94-171) Summary File, the counts certified as of 1 April 2020, read here for six states: Pennsylvania, Texas, New York, Hawaii, Mississippi and New Mexico. A 1975 statute obliges the Bureau to hand this file to every state within a year of Census Day so that legislatures can draw districts from it. The form's seven questions, and how one of them becomes most of the published file, are the subject of the decennial chapter.

It is the right file for two reasons. First, it is the operative one. Every legal claim about racial fairness in American elections is stated in its categories. A vote-dilution claim under §2 of the Voting Rights Act turns on whether a minority group could form a majority in a district, a number computed from this file. Language-assistance coverage under §203 is decided in the same terms. If the categories fit people badly, the misfit does not stay in the data; it propagates into the districts, the lawsuits and the money.

Second, the file reports race *crossed with* Hispanic origin, so it can be used to interrogate its own categories. The American Community Survey asks the same two questions in more detail, but it uses the same boxes, so it inherits the misfit rather than measuring it.

The boxes themselves are not the Bureau's. They come from the **Office of Management and Budget**, a White House office whose Statistical Policy Directive No. 15 binds every

federal agency. The version governing 2020, written in 1997, set five minimum race categories and two ethnicity categories, required that ethnicity be asked first as a separate question, and allowed more than one race. It also said what the categories are not: socio-political constructs, in its own words, not scientific or anthropological ones.

The same text defined White as “a person having origins in any of the original peoples of Europe, the Middle East or North Africa”. A respondent whose family came from Lebanon or Iran had no other place to go. In March 2024 the directive was rewritten again — a single combined question, a new Middle Eastern or North African category, compliance by 2029.

02 The data

What arrives from the Bureau’s server is pipe-separated text with no column headers, split across pieces that join on a record number. Counties are the rows whose summary-level code reads 050; everything else, every block and tract, is discarded. Three tables are kept by field position, located in a published technical specification: P1(race), P2 (Hispanic origin by race) and P5 (group quarters). The FIPS code is held as text, because turning 01001 into the number 1,001 is how joins go quietly wrong, and county names come from the Census Gazetteer, matched on that code.

Item	Value
Source	2020 Census Redistricting Data (P.L. 94-171) Summary File
Reference date	1 April 2020
Counties	503
States	6
People covered	68,883,526
Share of the U.S. population	21%
Tables kept	P1(race), P2 (Hispanic origin by race), P5 (group quarters)

One clean row per county, 503 of them. The variables, by name: `total`; the six race-alone counts (`white`, `black`, `aian`, `asian`, `nhpi`, `other_race`) plus `two_or_more`; and the origin pair `hispanic` and `not_hispanic`. An `nh` version of every race column counts only non-Hispanic respondents, and the group-quarters columns run `gq_correctional` through `gq_military`. Six states rather than fifty, because these six pull race and ethnicity apart in usefully different directions. Every share below is therefore unrepresentative by design, and covers 68,883,526 people rather than the country.

Two things were done to the numbers before this brief was written, one by the Bureau and one by the build. The Bureau injected privacy noise: small deliberate adjustments so that no individual’s answers can be reconstructed, exact at the state level, close at the county level. The build then checked the arithmetic it was given:

Test	Holds	Counties tested
one race + two or more races = total, in every county	TRUE	503
Hispanic + not Hispanic = total, in every county	TRUE	503

Nothing that follows is a data-quality problem. The count is exact and it breaks apart without error. It is the categories that are in question.

Before you read on, commit to two numbers. In these six states, 7,072,769 people answered the race question by choosing “Some Other Race”, and 8,576,792 reported two or more races. The form asked about Hispanic origin separately, one question earlier. **What share of each of those two groups do you think said yes to it?** Write both percentages down before you read on.

03 What it says about democracy

Because Hispanic origin is asked separately, a person can be, and millions are, both Hispanic and white. Which means “how white is this state?” is a question with two correct answers.

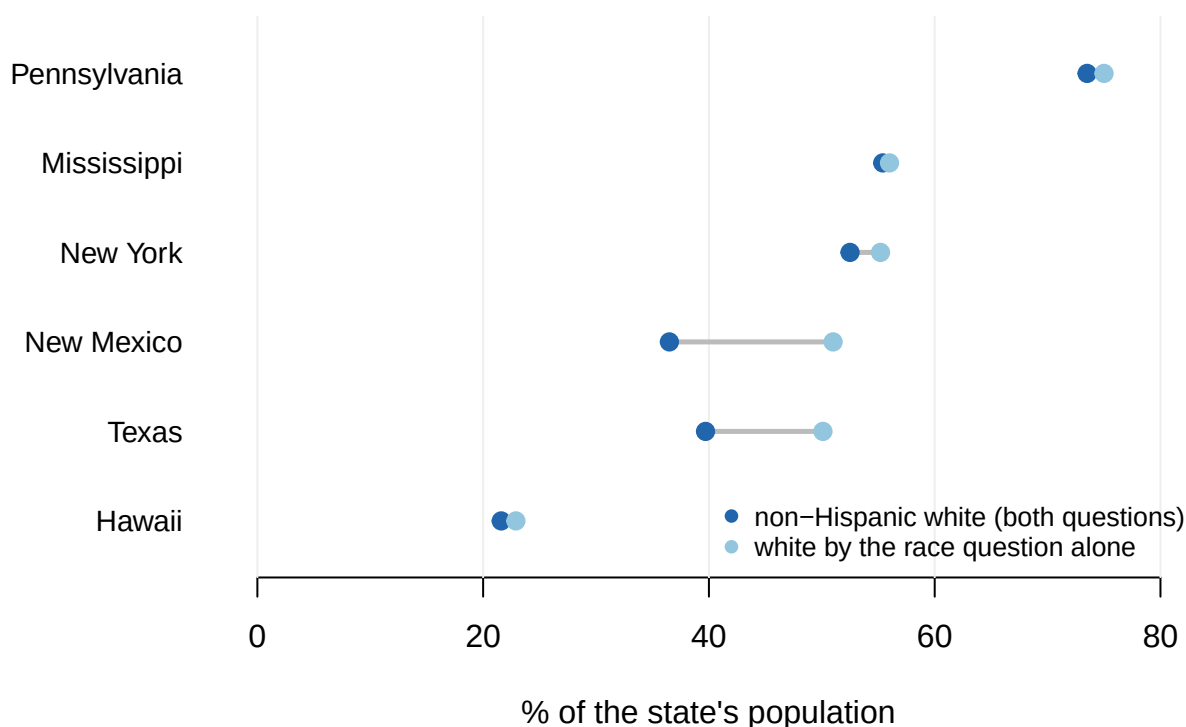


Figure 1. Two correct answers to “how white is this state?”, in six states. Each state appears once with two readings joined by a line: the share answering the race question “white”, and the share who are white *and* not Hispanic. The distance between the dots is the point of the figure: it is the people who are both, and it is why the form is a dumbbell rather than a bar.

New Mexico is 51.0% white by the race question and 36.5% white once the origin question is counted. By one measure it is a majority-white state; by the other it is not close. Both numbers are correct, they answer different questions, and almost nobody reporting a figure like this says which one they used. Across the six states the gap tracks the Hispanic share almost mechanically (a correlation of 0.982): 14.5 points in New Mexico, 0.6 in Mississippi, where few people are both.

So far this is an accounting consequence of asking two questions. It becomes something else in the people who answered the race question by rejecting every box on it. 15.0% of New Mexicans and 13.6% of Texans chose "Some Other Race", and the file says who they are:

Group	People	Share
Chose 'Some Other Race'	7,072,769	
of whom Hispanic	6,684,740	94.5%
of whom not Hispanic	388,029	5.5%

94.5% of the people who rejected every race box are Hispanic. The leftover category on the race question is, in practice, an ethnicity box. The form asks a question a large minority of respondents do not think is well posed, then records their refusal as though it were an answer.

That would be a contained problem if it were the only such box. The second unusual column is `two_or_more`, normally read as a story about mixed-race families, with Hawaii as the obvious place to look. Most readers' written-down guess for it is in the teens or twenties.

Group	People	Share
Reported two or more races	8,576,792	
of whom Hispanic	6,083,462	70.9%
of whom not Hispanic	2,493,330	29.1%

70.9% of everyone reporting two or more races in these six states is Hispanic. Put every race answer beside the origin answer and both hatches show at once:

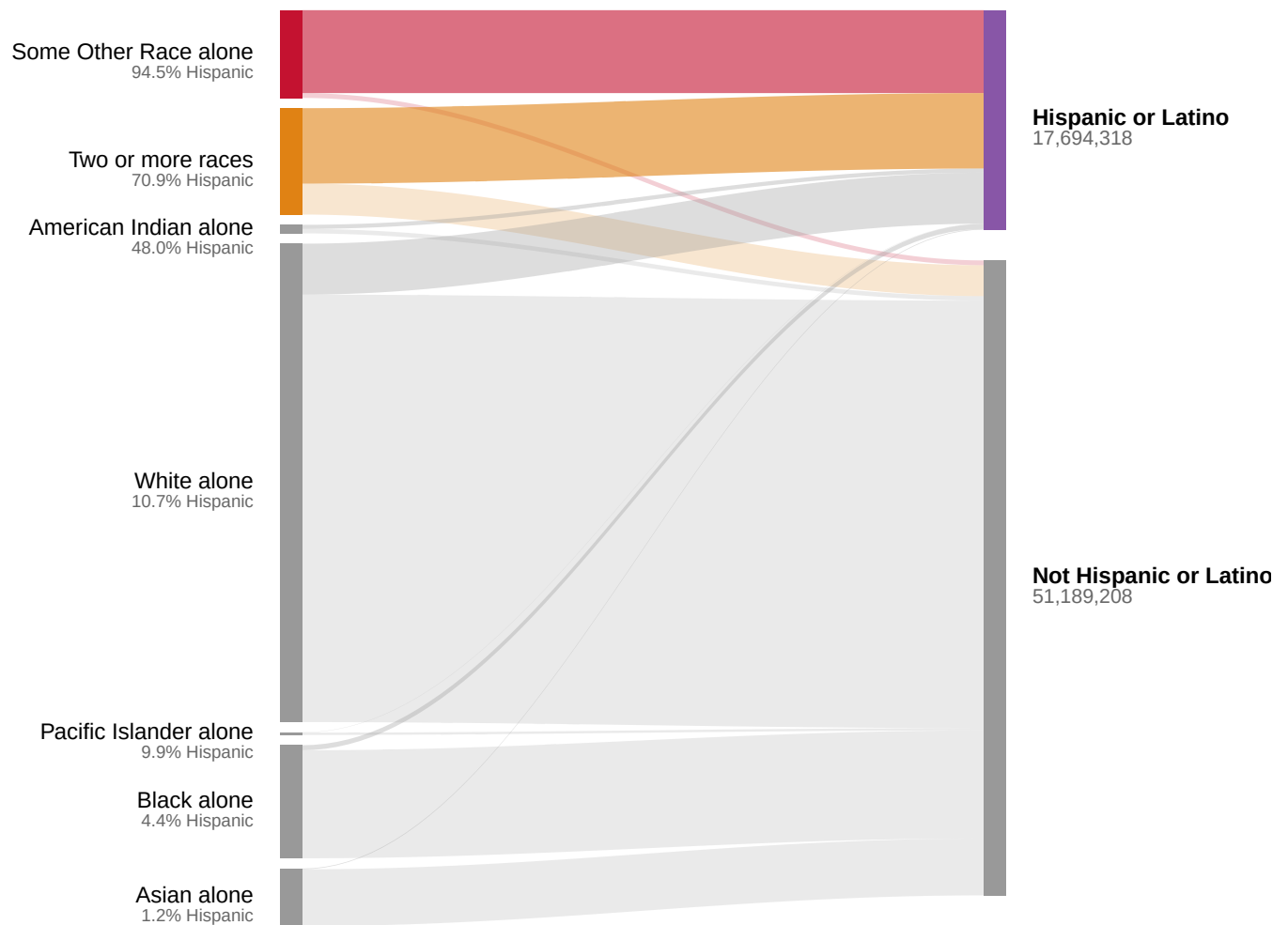


Figure 2. Every race answer in these six states, split by the answer to the separate origin question. Bands are ordered by how Hispanic each race answer turned out to be. The two at the top are the two leftover categories: “Some Other Race alone” at 94.5% Hispanic and “Two or more races” at 70.9%. The next answer down is 48.0%, and everything below it behaves nothing like the top two.

The counties say the same thing more sharply. **The ten most multiracial counties in this file are all in Texas**, strung along the Rio Grande, and all of them are between 74.6% and 97.7% Hispanic. Hawaii’s most multiracial county, Hawaii County at 29.5%, does not make the list.

County	State	Population	% two or more races	% Hispanic
Starr County	Texas	65,920	47.1	97.7
Brooks County	Texas	7,076	46.8	88.2
Zapata County	Texas	13,889	45.5	93.6
Maverick County	Texas	57,887	43.2	94.9
Hidalgo County	Texas	870,781	40.6	91.9
Cameron County	Texas	421,017	40.4	89.5
Webb County	Texas	267,114	40.2	95.2
Presidio County	Texas	6,131	39.9	81.4

County	State	Population	% two or more races	% Hispanic
Jim Hogg County	Texas	4,838	36.7	88.5
Kenedy County	Texas	350	36.3	74.6

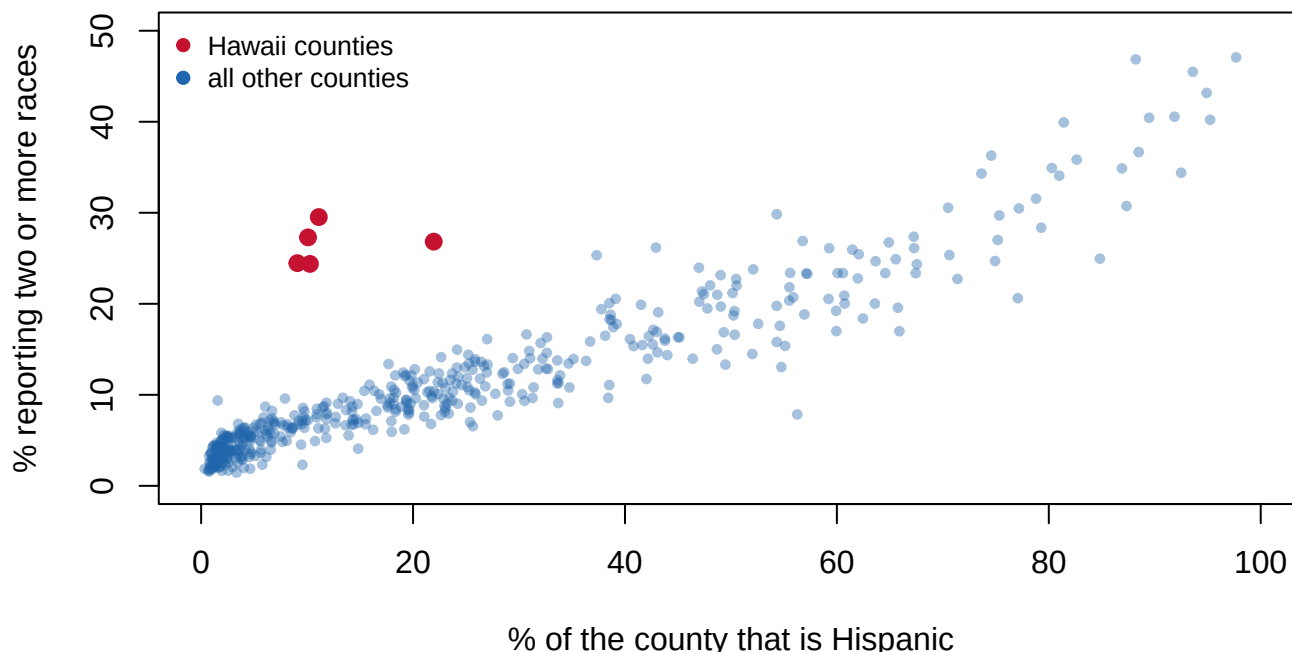


Figure 3. The multiracial share of a county is largely a function of its Hispanic share.

One dot per county, all 503 in the file; a scatter, because the claim is a relationship between two shares. The correlation is 0.924. Hawaii's counties are picked out because Hawaii is where most people locate multiracial America, and they sit off the trend: the exception, not the rule.

So the obvious reading is wrong twice over. "Two or more races" here is not primarily mixed-race families, and it is not primarily Hawaii. **It is the second escape hatch from the same badly-posed question, used by the same population.** The mechanism is on the form itself. The 2020 questionnaire added write-in lines under the race boxes, and Hispanic respondents who had previously ticked "Some Other Race" alone often wrote origins the Bureau coded as two races. The multiracial count in these states jumped accordingly.

That is the finding about democracy, and it is worth stating as a rule. **A trend line that crosses a category rewrite partly measures the rewrite.** The 2010-to-2020 rise in multiracial America compares instruments as much as people. The same rule now points forward: the 2024 revision merges race and Hispanic origin into one question by 2029. That change will end the two-answers problem in Figure 1 and make Figures 2 and 3 impossible to extend.

The categories these charts measure are federal policy, revised in 1997 and 2024. Every downstream series is stated in the categories as they stood that decade: districts, §2 claims, funding formulas. The population the 2020 form fit worst is precisely the population those protections most concern.

04 What this brief cannot tell you

Nothing here is a national estimate. Six states were chosen because race and ethnicity pull apart in them, so every share above is unrepresentative on purpose. Adding the other forty-four is the only way to a claim about the country.

What people meant is not in the file. The write-in text behind “Some Other Race”, where respondents said in their own words what the boxes could not hold, is coded into categories before publication and never released. This brief can show that a hatch was used; it cannot show what was written in it.

The noise is unquantified. The privacy adjustments were applied before release and the file carries no column saying by how much. These are counties; the blocks that districts are actually built from are smaller by orders of magnitude, and that is where the noise bites hardest.

Decades do not compare. The 2020 form added write-in areas and examples the 2010 form lacked, and the coding changed with them, so a 2010-to-2020 change in these columns is not a change in people alone.

Residents, not citizens. The file counts everyone living in a county, which is what apportionment uses; it says nothing about citizenship.

05 What you should have learned

- Race and Hispanic origin are two separate questions by federal rule, so “how white is New Mexico?” has two correct answers: 51.0% and 36.5%.
- The race question has two leftover boxes, and one population uses both: in these six states 94.5% of “Some Other Race” and 70.9% of “two or more races” respondents are Hispanic.
- Multiracial geography follows the seam, not Hawaii: the correlation between a county’s Hispanic share and its multiracial share is 0.924 across 503 counties, and the ten most multiracial counties are all on the Texas border.
- The categories are set by the Office of Management and Budget, rewritten in 1997 and 2024, so a trend crossing a rewrite partly measures the rewrite.
- The counts themselves are exact and internally consistent, with both decompositions holding in all 503 counties — which is how a file can be arithmetically perfect and still measure its own categories’ misfit.

06 Extensions

None of these is answered above, and every one can be answered by sorting or grouping in a spreadsheet.

- `p194171_counties.csv` carries both `white` and `nh_white`. Take the difference for every county, divide by `total`, and sort. Where does the choice between the two definitions change the answer most?
- `other_race` and `two_or_more` are the boxes people reach for when none of the offered ones fit. Compute their combined share of `total`, county by county. Which places does the form fit worst?

- `hispanic` and `not_hispanic` should add to `total` in every row. Check it, then explain to somebody who has not read this brief why Hispanic origin is missing from the race columns.
- `gq_correctional` counts people in prison, counted where the facility is. Divide it by `total` and sort. What would the top counties' shares do to a district drawn from this file?

Two stretch ideas, beyond the spreadsheet. Fetch a seventh state's archive from the same server, one with a large Middle Eastern population such as Michigan, and ask whether the White column behaves like a box that fits. Or pull the 2010 P.L. 94-171 file for Texas and compare `two_or_more` county by county, to put a number on how much of the multiracial rise is the instrument.

07 Sources

Data

- U.S. Census Bureau, *2020 Census Redistricting Data (P.L. 94-171) Summary File*, legacy format, tables P1, P2 and P5, for Pennsylvania, Texas, New York, Hawaii, Mississippi and New Mexico. https://www2.census.gov/programs-surveys/decennial/2020/data/01-Redistricting_File--PL_94-171/ County names joined from the Census Gazetteer, because the file's own header populates the name field inconsistently.
- U.S. Census Bureau, *2020 Census Questionnaire*. The two questions at the head of this brief are its questions 8 and 9, and the sentence between them is the note the Bureau printed to explain why both had to be answered.

Literature and law

- Office of Management and Budget (1997). "Revisions to the Standards for the Classification of Federal Data on Race and Ethnicity." Statistical Policy Directive No. 15, *Federal Register* 62: 58782 (30 October 1997) — the standard governing the 2020 census.
- Office of Management and Budget (2024). "Revisions to OMB's Statistical Policy Directive No. 15." *Federal Register* 89: 22182 (29 March 2024) — the combined question and the Middle Eastern or North African category.
- Voting Rights Act § 2, 52 U.S.C. § 10301, and § 203, 52 U.S.C. § 10503 — the enforcement the race and Hispanic-origin questions exist to serve.
- Nobles, M. (2000). *Shades of Citizenship: Race and the Census in Modern Politics*. Stanford: Stanford University Press.
- Prewitt, K. (2013). *What Is Your Race? The Census and Our Flawed Efforts to Classify Americans*. Princeton: Princeton University Press.
- Kenny, C. T., Kuriwaki, S., McCartan, C., Rosenman, E. T. R., Simko, T. and Imai, K. (2021). "The Use of Differential Privacy for Census Data and Its Impact on Redistricting: The Case of the 2020 U.S. Census." *Science Advances* 7(41): eabk3283.
- *Alabama v. U.S. Department of Commerce*, 546 F. Supp. 3d 1057 (M.D. Ala. 2021) — Alabama's challenge to the privacy noise, dismissed.

The data itself

Every figure above is drawn from this table. It is plain CSV, it opens in a spreadsheet, and it is yours to take further.

`pl94171_counties.csv`

REBUILD THIS DATA YOURSELF, WITH AN AI ASSISTANT

I want to rebuild a public dataset from its original source, without any starting files. Please do the following and show your work.

THE SOURCE. U.S. Census Bureau, 2020 Census Redistricting Data (P.L. 94-171) Summary File, legacy format – the file the Bureau is required by law to hand every state so it can draw districts. One zip per state under

https://www2.census.gov/programs-surveys/decennial/2020/data/01-Redistricting_File-PL_94-171/

No account or key is needed. Fetch six states – Pennsylvania, Texas, New York, Hawaii, Mississippi and New Mexico – each from a folder of that name (two-word states use an underscore), for example Pennsylvania/pa2020.pl.zip. Together they are roughly 300 MB down for a few hundred rows out; that ratio is normal for this file. Each zip holds four pipe-delimited files with no headers: a geographic header, one row per geographic unit, and three data segments that join to it on the LOGRECNO column. Counties are summary level 050. In the first segment, Table P1 (race) starts at field 6 and Table P2 (Hispanic or Latino origin by race) at field 77; in the third segment, Table P5 (group quarters) starts at field 6. Read every code as text – FIPS codes lose their leading zeros the moment they become numbers.

WHAT TO BUILD.

1. One county table covering all six states: total population, the six race-alone counts, two or more races, the Hispanic and non-Hispanic breakdown of each, and the group-quarters counts (correctional, college, military, nursing).

CHECK YOUR WORK. The copies this book used were fetched in August 2026. If your rebuild matches them, you should find:

- 503 county rows: 67 in Pennsylvania, 254 in Texas, 62 in New York, 5 in Hawaii, 82 in Mississippi and 33 in New Mexico
- Honolulu County, Hawaii: 1,016,508 people, of whom 436,853 are Asian alone

These are the final legal files of the 2020 census; nothing in them will change before the 2030 cycle.